

payments received.

The Defendant made payments of \$1,200.

Costs are \$513.95. An accounting of the costs was included in the Declaration.

The court finds that since the case was never dismissed, there is no judgment to set aside.

Disposition

Plaintiff's Motion is granted in that Judgment will be entered (There was no judgment to set aside prior to today's ruling). Judgment will be entered in the amount of \$28,447.59.

Plaintiff to file order on Motion, as well as submit Judgment.

6. 9:00 AM CASE NUMBER: L25-00091

CASE NAME: WELLS FARGO BANK, NA VS. MARLIN THROWER

PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS;

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer.

The Motion is unopposed.

Background

On 4/7/26, the court granted Plaintiff's motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 12/8/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 12/8/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on

facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$8,732.31, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the court (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,732.31.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order and serve copy on Defendant.

7. 9:00 AM CASE NUMBER: L25-01777

CASE NAME: CAPITAL ONE N.A. VS. ALBA VIVEROS

NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT;

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.